

identifying by Chase Bank and PNC Bank as having interest in the subject property by way of senior deeds against the subject property, Plaintiff has not named either entity as a defendant. (FAC ¶¶ 4, 18.) All parties with an interest in property subject to a quiet title action must be named as defendants. (Code of Civil Procedure § 762.010; *Taliaferro v. Riddle* (1958) 166 Cal. App. 2d 124, 128.)

Plaintiff is to appear at the hearing to discuss the above issues.

Motion to Stay

Before the court is a motion to stay filed by Plaintiff against defendant SH West Coast, LLC (Defendant). The motion is **DENIED**.

Plaintiff requests the court stay an unlawful detainer (U/D) action in Orange County Superior Court Case No. 30-2026-01545969-CL-UD-CJC, which is in a different courtroom. The court first notes Plaintiff did not provide any identifying information regarding the U/D case. However, even if the case had been properly identified, that matter is not before this court and Plaintiff cited to no statute or case which permits this court to unilaterally stay an action in a different court. It also appears that judgment has been entered in the U/D case, which would in essence moot the motion and take jurisdiction away from this court even if it were in theory able to stay an action in a different court.

The motion to stay is denied.

Motion for Preliminary Injunction

Plaintiff filed motion for preliminary injunction, requesting the court enjoin Defendant from

pursuing any eviction, possession enforcement, or interference with the subject property. The motion is **DENIED**.

Defendant has already filed the U/D case against Plaintiff in the separate court. Pursuant to Code of Civil Procedure section 526, subdivision (b), the court cannot grant an injunction to stay another court. Also, on April 10, 2026, judgment in the U/D case was entered which adjudicated that Defendant had possession of the Property. “Whether an injunction restraining the sale of real property should be granted becomes a moot question on appeal where in the meantime the property has been sold.” (*Los Angeles Cnty. v. Butcher* (1957) 155 Cal. App. 2d 744, 746.) The court cannot retroactively enjoin Defendant from an action already taken.

Finally, to the extent Plaintiff requests the court prohibit Defendant from “interfer[ing] with the senior lender’s reinstatement process,” there are no arguments or facts Defendant is interfering with anything Chase and/or PNC are doing, that Plaintiff can represent the interests of non-party lienholders, that Plaintiff will prevail on the sole cause of action, or that Defendant does not have legal interest or ownership over the Property.

As Plaintiff has not shown the requested relief is something this court can issue or that Plaintiff is likely to prevail on the sole cause of action, the motion is denied.

Motion for Leave to Amend

Plaintiff’s motion for leave to file a second amended complaint (SAC) is **GRANTED**.

The motion is granted pursuant to Code of Civil Procedure section 473, subdivision (a)(1).

“Generally, leave to amend must be liberally granted [Citation], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation.” (*Solit v. Tokai Bank, Ltd. New York Branch* (1999) 68 Cal. App. 4th 1435, 1448.) The court finds no prejudice to Defendant regarding the filing of the SAC.

Plaintiff is ordered to file and serve the SAC attached to the motion within five days of the hearing. Defendant is ordered to file a responsive pleading pursuant to code.

Motion for Lis Pendens

Plaintiff’s motion for lis pendens is **DENIED**.

The requirements for requesting a list pendens are only that a real property claim is alleged, which would, if meritorious, affect title to, or the right to possession of, specific real property. (Code of Civil Procedure sections 405.4, 405.20, 405.21.) The moving party is also required to identify and notice all parties with an interest in the subject property. (*Schneider v. Bank of Am. N.A., No. 2:11-CV-2953 LKK DAD*, 2012 WL 761975, at *11 (E.D. Cal. Mar. 6, 2012).) The requirements identified by Defendant under Code of Civil Procedure sections 405.3 and 405.32 are only when a motion to expunge has been filed, not for the initial request.

Although an action for quiet title does permit a list pendens (Code of Civil Procedure section 761.01), Plaintiff has failed to state a cause of action for quiet title as Plaintiff has not tendered the debt that existed on the property at the time of the foreclosure sale, nor has Plaintiff offered to pay the debt. (*Miller and Starr* § 13:256. Requirement of tender, 5 Cal. Real Est. § 13:256 (4th ed.); *Lona v. Citibank, N.A.* (2011) 202 Cal. App. 4th 89, 104.)

As Plaintiff has not stated a cause of action and has not identified or notified all entities with an interest in the property regarding the motion, the motion is denied.

Motion to Consolidate

Plaintiff's motion to consolidate the present action with the U/D case is **DENIED**.

The court can only consolidate actions in limited circumstances. (California Rules of Court, Rule 3.300.) Notably, consolidation can only occur in matters that are pending. Judgment in the U/D case was entered on April 10, 2026, which results in a final determination of the merits. As judgment has been entered, the court would exceed its jurisdiction if it granted the motion as there are no questions of law or fact pending before the court in the U/D case. (*Sosnick v. Sosnick* (1999) 71 Cal. App. 4th 1335, 1339–40.)

The motion is denied.

Requests to Take Judicial Notice (RTJN) and Objections:

Plaintiff's RTJN:

Granted as to Exs. 1 and 3 (Evid. Code § 452(c)), and Ex. 5 (Evid. Code § 452(d)). Denied as to Exs. 2 as there is no basis for taking judicial notice of a mortgage statement, and Ex. 4 as the document does not appear to have any court filing stamp.

Defendant's RTJN:

Granted as to Exs. B – G (Evid. Code § 452(d)). Denied as to Ex. A as judicial notice of a filed declaration is unnecessary.

		Plaintiff's Objections on Leave to Amend: Overruled as to Nos. 1 – 8 as Plaintiff did not make proper objections. (See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶¶ 9:105.5.) The court continues the 7/6/26 CMC to 9/8/26 at 8:45am in Dept. C24. Defendant shall give notice.
208	<i>Assadkhan vs. Newport Bluffs LLC</i>	The Motion to Compel Arbitration, filed on 3/9/26 by Defendants Newport Bluffs LLC, The Irvine Company LLC, and Irvine Management Company (Defendants), is GRANTED. As a preliminary matter, the Opposition presented by Plaintiffs Kimya Assadkhan and Tahmineh Sharifnia (Plaintiffs) was extremely tardy. Plaintiffs have not shown circumstances justifying that delay. However, as Defendants were nonetheless able to present a substantive reply, the court will exercise its discretion and consider the Opposition . Defendants have shown that Plaintiffs entered into a lease with an “Addendum for Arbitration of Disputes and Class Action Waiver” (Addendum) which would encompass the claims presented here, and have provided a complete copy. (Kerzie Decl., Ex. 1.) The procedural requirements for the Motion under Code of Civil Procedure section 1281.2 and Rule 3.1330 of the California Rules of Court are thus adequately met. The Opposition does not dispute that this is so. Plaintiff instead argues that the Addendum is unconscionable. A delegation clause does not deprive the court of jurisdiction to address

		unconscionability claims. (See <i>Rent-A-Center, West, Inc. v. Jackson</i> (2010) 561 U.S. 63, 70-71.) But procedural and substantive unconscionability here are not adequately shown. Defendants have shown that the Federal Arbitration Act (“FAA”) applies here, which Plaintiffs do not dispute. The FAA preempts claims which would invalidate any arbitration provision in a rental lease. (<i>AT&T Mobility LLC v. Concepcion</i> (2011) 563 U.S. 333, 341.) The Addendum reasonably limits costs that Plaintiffs may incur to arbitrate. (Kerzie Decl., Ex. 1, ¶ 4.) Arguments as to the reasonableness of specific lease terms are issues to be addressed in the arbitration. The Motion is therefore GRANTED. This action is stayed pending completion of the arbitration. The court sets a status conference re: arbitration for 3/29/27 at 8:45am in Dept. C24. Defendants’ Request for Judicial Notice (ROA 40) is GRANTED as to Ex. A under Ev. Code §452(c), as to the existence of the record, but DENIED as to Ex. B. Defendants shall give notice.
209	<i>Sanders vs. California Department of Transportation</i>	Plaintiff Marvin Sanders’ motion to strike defendant Robert Betha’s demurrer is DENIED. While the demurrer was untimely filed, there is no evidence of bad faith or prejudice to Plaintiff. As such, the Court will exercise its discretion to consider the demurrer. (Code of Civ. Proc. § 436; <i>Jackson v. Doe</i> (2011) 192 Cal.App.4th 742, 750.) The court continues the CMC from 7/6/26 to 7/20/26 at 1:30pm. Defendant shall give notice.

210	<i>Venegas vs. Ford Motor Company</i>	Defendant Ford Motor Company's (Ford) motion for summary judgment or summary adjudication in the alternative is DENIED. The Court declines to rule on Ford's evidentiary objections. (Code of Civ. Proc. § 437c, subd. (q).) <u>1st cause of action (breach of express warranty):</u> Ford failed to meet its initial burden that Plaintiff cannot establish the elements of the breach of express warranty claim. (See Code Civ. Proc., § 437c, subd. (p)(2); <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 825, 851 [burden]; <i>Donlen v. Ford Motor Co.</i> (2013) 217 Cal.App.4th 138, 152 [elements].) Specifically, Ford's own evidence shows Plaintiff presented the vehicle for repair to Ford's authorized repair facility on at least six occasions. (See Defendant Ford's Separate Statement of Undisputed Material Facts (DSS) 10, 16-20; <i>Oregel v. American Isuzu Motors, Inc.</i> (2001) 90 Cal.App.4th 1094, 1103 [the mere presentation of the vehicle to Ford's authorized repair facility counts as opportunity to repair].) There is no evidence the issues for which the Plaintiff presented the vehicle fell outside the coverage of Ford's warranty. The fact that the repairs were not submitted for "warranty reimbursement" does not establish that the alleged defects fell outside the scope of Ford's warranty. While Ford contends the modifications of the subject vehicle by Tuscany voided Ford's warranty, including as to the engine and suspension, the evidence to which Ford cites is nonexistent. (See DSS 7 [website page no longer exists].) <u>2nd cause of action (implied warranty):</u> Ford failed to meet its initial burden the subject vehicle was "in safe condition and substantially free of defects." (See Code Civ. Proc., § 437c, subd. (p)(2); <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 825, 851 [burden]; <i>Isip v. Mercedes-Benz USA, LLC</i> (2007)
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155 Cal.App.4th 19, 24, 27 [fitness for the ordinary purpose of a vehicle means the vehicle is “in safe condition and substantially free of defects”].)

3rd cause of action (violation of Civ. Code § 1793, subd. (b)): Ford failed to meet its initial burden showing Ford’s authorized dealerships commenced repairs within a reasonable time after Plaintiff presented the vehicle for repairs. (See Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 825, 851 [burden]; Civ. Code § 1793.2, subd. (b).) As discussed above, Ford failed to produce sufficient evidence that the issues for which Plaintiff presented the vehicle to Ford’s authorized dealerships were not covered by Ford’s warranty.

Defendant Ted Jones Ford, Inc. dba Ken Grody Ford Buena Park’s (Ken Grody) motion for summary judgment is GRANTED.

Ken Grody’s request for judicial notice is GRANTED. (Evid. Code § 452, subd. (d).)

Ken Grody’s evidentiary objections to the declaration of Olga L. Ponce is OVERRULED as to nos. 1, 2, 6-11 and SUSTAINED as to nos. 3-5 based on lack of personal knowledge.

Ken Grody’s evidentiary objections to the declaration of Roque Venegas is OVERRULED as to nos. 1, 8-15 and SUSTAINED as to nos. 2-7, 16-22 based on relevance, lack of personal knowledge and/or improper expert opinion.

4th cause of action (negligent repair): Ken Grody met its initial burden Plaintiff cannot establish breach of the applicable standard of care. (See Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar v. Atlantic*

		<i>Richfield Co.</i> (2001) 25 Cal.4th 825, 851 [burden]; <i>Sabicer v. Ford Motor Company</i> (C.D. Cal. 2019) 362 F.Supp.3d 837, 840 [elements]; Defendant Ken Grody’s Separate Statement of Undisputed Material Facts (DSS) 12-14.) Plaintiff failed to meet his shifted burden to show a triable issue of fact. (See <i>Aguilar, supra</i>, 25 Cal.4th at p. 851 [burden]; Response to DSS 12-14; <i>Webster v. Claremont Yoga</i> (2018) 26 Cal.App.5th 284, 288-289 [the plaintiff’s failure to present expert testimony to contradict defense expert’s opinions entitles the defendant to summary judgment].) To the extent Plaintiff argues there are triable issues as to the “negligent diagnosis, inspection and release” of the subject vehicle, these facts are not alleged in the Complaint.” (See Compl. ¶¶ 70-72; <i>Nieto v. Blue Shield of Calif. Life & Health Ins. Co.</i> (2010) 181 Cal.App.4th 60, 74 [the pleadings determine the scope of relevant issues on a summary judgment motion].) Plaintiff’s request for a continuance is DENIED because the information sought is irrelevant to the issues raised by this motion and Plaintiff lacked diligence in discovering facts earlier. (Code of Civ. Proc. § 437c, subd. (h).) Defendant Ken Grody shall prepare a proposed judgment within 10 days and give notice.
211	<i>Aghawani vs. Vershinin Dental Corporation</i>	Before the Court is a Motion to Place Documents Under Seal filed by plaintiff Lamis Aghawani. The hearing is CONTINUED to August 17, 2026 at 1:30 p.m. in Dept. C24, as set forth herein. A party requesting a court record be filed under seal “must file a motion or an application for an order sealing the record.” (Cal. R. Ct. 2.551(b)(1).) “The motion or application must be

	accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” (<i>Id.</i>) The instant motion is brought pursuant to Code of Civil Procedure §367.3. Plaintiff states she is “an active participant in the Secretary of State’s confidential address program, Safe at Home.” (ROA 62.) She also states that her program identification number is 3763. (ROA 60.) On June 26, 2026, the plaintiff filed a “Notice of Lodging of Redacted Documents” (ROA 76.) and concurrently lodged copies of the documents with redactions. The Court has reviewed the proposed redactions. On all documents identified in ROA 76, except for ROA 21, the plaintiff has redacted her name, address, email and phone number. The Court finds the redactions of this plaintiff’s “identifying characteristics” (as defined in Code of Civil Procedure §367.3(a)(1)) appropriate to justify sealing the documents and that the redactions are sufficiently narrowly tailored. However, on ROA 21, the redaction of the defendant’s file number and settlement offer are not appropriate for sealing. Additionally, Code of Civil Procedure §367.3(c) requires that: “In an action filed under this section, the plaintiff shall state in the caption of the complaint ‘ACTION BASED ON CODE OF CIVIL PROCEDURE SECTION 367.3.’” The proposed redacted complaint does not contain this statement in the caption. Finally, plaintiff will need to submit a proposed order on Judicial Council Form SH-001 which lists her pseudonym (Jane Doe), her address to be contained in the public record, as well as a listing of the documents to be sealed as referenced in the Notice of Lodging at ROA 76.
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		Accordingly, the hearing on the motion is CONTINUED to August 17, 2026 at 1:30 p.m. in Dept. C24 to allow plaintiff to correct the deficiencies listed hereing. All further documents must be filed not less than 14 calendar days prior to the continued hearing date. Additionally, the hearing on the Order to Show Cause as to why the complaint should not be dismissed for failure to serve the defendant as required by Rule 3.110 is CONTINUED to August 17, 2026 at 1:30 p.m. in Dept. C24. Any evidence submitted in response to the OSC is required to be filed 14 calendar days prior to the hearing.
212	<i>Law Offices of Joseph P. McGinley vs. Falck Mobile Health, Inc.</i>	Before the court is an unopposed Motion Directing Interpleading of Funds (Motion) filed by plaintiff Law Offices of Joseph B. McGinley (Plaintiff). The Motion is GRANTED. Plaintiff was in possession of \$42,673.35 in settlement funds (Funds) related to the underlying motor vehicle accident matter; the Funds have now been deposited with the court. (Ferrell Decl. ¶ 8, Ex. A.) Plaintiff states there are conflicting demands on the Funds and Plaintiff has applied to the court for an order discharging it from liability and dismissing it from the action. (Code of Civil Procedure section 386.5.) Plaintiff stated by affidavit that it has no interest in the Funds. (Ferrell Decl. ¶ 7.) As the Funds have been deposited with the clerk of the court, the court will grant Plaintiff's request and discharge Plaintiff from liability regarding the Funds and dismiss Plaintiff from this action upon Plaintiff's filing of notice of this ruling. The court also grants Plaintiff's request for reasonable attorney fees in the amount of \$7,436.70, and directs the clerk to issue payment in that amount to Plaintiff out of the Funds. (Code of

		Civil Procedure section 386.6; <i>Hood v. Gonzales</i> (2019) 43 Cal.App.5th 57, 81-82.) Case management conference remains on calendar for 7/6/26. Plaintiff shall give notice.
213	<i>Rodriguez vs. Parker</i>	The Motion for Judgment on the Pleadings, filed on 2/20/26 by Plaintiff Steven Lee Rodriguez (Plaintiff), is DENIED. The Motion was not validly served on Defendant Connie Doris Parker (Parker). The proof of service reflects service by email alone, but the record does not reflect that Parker, an unrepresented party, consented to receive electronic service. (See Code of Civil Procedure section 1010.6(c)(2).) To the extent that this Motion seeks to strike the Answer as defective, a motion to strike would have been the proper means to do so. (See Code of Civil Procedure section 435.) But if treated as a motion to strike, this Motion is untimely. (Code of Civil Procedure section 435(b)(1).) Nor has Plaintiff shown here that relief is warranted under Code of Civil Procedure section 438(c)(1)(A) in any event. The Motion is therefore DENIED. Plaintiff's Request for Judicial Notice (ROA 76) is GRANTED as to the existence of the record presented as Ex. 1 under Ev. Code section 452(d). The Request is otherwise DENIED, as the relevance of those documents here is not shown. (Superior Court v. County of Mendocino (1996) 13 Cal.4th 45, 59, fn. 7.) The court continues the 7/6/26 CMC and OSC to 11/2/26 at 1:30pm in Dept. C24. Plaintiff shall give notice.